Checklist

Recruitment Red Flags Checklist

The recruitment red flags specific to the India-EU corridor that a prospective candidate may encounter during the migration cycle, and how to verify and report them.

AUDIENCE	PUBLISHED	OWNER
Candidate, Student, Researcher	**6 October 2026**	**ICMPD Gateway Editorial Team**

Recruitment-fraud risk affects the entire spectrum of prospective migrant workers including highly qualified ICT (Information and Communication Technology) and healthcare professionals and seasonal and semi-skilled candidates. Anchored in the GCM Objective 6 and fair-recruitment standards outlined in international labour instruments, the checklist below sets out the recruitment red flags specific to the India -EU corridor that a prospective candidate may encounter during the migration cycle. Further, given the emergence of generative AI as a force multiplier for cross-border recruitment deception, the checklist also integrates novel AI-enabled typologies including deep-fake video interviews and AI-generated qualification, recognition and authority correspondence. This will equip the candidates with comprehensive , holistic and evidence-based information for ensuring an informed migration decision.

1. Unverifiable Recruiter and Agency identity

- **Absence of demonstrable legal status of the recruiter:** Legal cross-border recruiters operate under a licensing or registration regime. Candidates should verify the destination-side status of the EU recruiter/company/agency through the Business Registers Interconnection System (BRIS) on the European e-Justice Portal. BRIS allows anyone to search for information on companies registered in EU and European Economic Area (EEA) countries. The ‘Find a company’ section available on the multilingual user interface on the European e-Justice Portal allows to search for and access company information coming directly from the national business registers.
- **Absence of a verifiable physical presence:** A recruiter reachable only via a personal mobile number or a webmail address and without a registered office address or corporate email domain matching the agency’s website is a red flag. EURES recommends searching the recruiter’s name together with the words ‘scam’ or ‘fraud’ to surface prior negative reports.

- **Impersonation of licensed employers or public officials:** Documented cases include fraudulent recruitment with real logos and signatures. Verification directly with the alleged employer's central human-resource office, on contact details independently sourced from the corporate website, is essential.

2. Ambiguous Job Description and Content

- **Job description that is vague, generic or inconsistent with the employer's stated business:** A 'software engineer' role at a company with no technology footprint , an 'IT' post at a hospitality entity fails the coherence test. This is a characteristic feature of trafficking cases involving deceptive recruitment : the 2024-2025 trafficking of Indians into Southeast Asian cyber-scam (UNODC, October 2024) characteristically began with 'IT' , 'Data-entry' and 'digital marketing' offers advertised through social media.
- **Salary or benefit promises materially inconsistent with the Member State's labour market:** Under Directive (EU)2021/1883, the EU Blue Card salary threshold must sit between 1.0 and 1.6 times the destination Member State's average gross national annual salary. A recruiter offering a Blue Card-eligible salary below the proposed threshold or far above the market wage should be checked against the EUROSTAT data and the destination's published salary tables . For example, in the case of Germany, the annual thresholds are published on the Make it in Germany portal.
- **Guaranteed visa approvals, residence permit or citizenship:** Visa and residence-permit decisions are the exclusive competence of Member State immigration authorities and cannot be guaranteed by any recruiter. Advertised guarantees are per se indicators of fraud.

3. Conspicuous Communication, Process and Behavioural Indicators

- **Approach through informal digital channels:** Initial contact via WhatsApp, Instagram DM, Telegram, TikTok or Facebook Messenger, rather than corporate email, EURES portal message, employer careers site or LinkedIn Recruiter is the starting point of digital recruitment fraud identified in ICMPD's The digital trap : How fake job ads exploit aspiring migrants and in the EURES editorial dated 15 June 2023. ICMPD documents the pattern of fake offer letters issued within hours followed by escalating fee requests.
  Further, a 2025 European Parliamentary Research Service briefing stated that 'in the EU, scammers have impersonated Europol agents' . For India-EU candidates, the medium is spoofed correspondence claiming to originate form a Member State Immigration authority, embassy or

consulate or an AI-generated letter on synthetic letterhead confirming ‘visa pre-approval’, ‘priority processing’ or ‘employer sponsorship registration. The standard countermeasure in such cases is verification against the actual Member State authority through contact details sourced from official websites.

- **Absence of a structured selection process:** Legitimate EU employers conduct structured selection processes which includes CV screening, at least one interview (usually video) , technical or professional assessment where applicable, reference checks and a formal offer on the company letterhead. Absence of any interview or an ‘interview’ limited to a typing test or a brief chat, is a documented pattern in the Ireland nursing fraud cases in 2024 and in the Southeast Asia cyber-scam trafficking.
- **Pressure tactics and manufactured urgency:** Statements such as ‘start this week’ , ‘final approval today’, ‘we have only one seat left’ or ‘pay now to secure the visa slot’ are consistent with recruitment-fraud documented across European recruitment-industry analyses. Such manufactured urgency is inconsistent with the multi-week timelines of real EU work-permit processes.
- **Requests for sensitive personal data before any selection stage:** Requests for passport bio-apge scans, biometric photographs, bank account details, salary certificates or income-tax returns before a documented formal application stage are not standard EU practice and expose candidates to ‘Identity theft’. EURES explicitly states ‘Never submit financial information via online forms during the recruitment process. No reputable company will start by asking for your bank or card details’.

4. Financial Indicators

- **Any recruitment fee or ‘related cost’ charged to the worker:** Under the ILO General Principles and Operational Guidelines for Fair Recruitment (2016) and the definition of recruitment fees and related costs (2018) , fees for recruitment services are the employer’s responsibility and not the worker’s. This is reinforced by IRIS Principle 1, ILO Convention No. 181, Article 7 and Dhaka Principle 1 (Employer Pays Principle) stating ‘no worker should pay for a job. The costs of recruitment should be borne not by the worker but by the employer’. For EU single-permit routes, Article 10 of Directive (EU) 2024/1233 further provides that permit-processing fees are payable by the employer who ‘shall not be entitled to recover such fees from the third-country national’.

EMPLOYER PAYS PRINCIPLE — THE STANDARD

IHRB Dhaka Principles (2012); IOM IRIS Standard; ILO Fair Recruitment (2016/2018)

WHAT THE WORKER MAY PAY	WHAT THE EMPLOYER MUST PAY
◦ Nothing for recruitment services. ◦ No processing, training, orientation, visa deposit, security deposit, medical or police-clearance fees. ◦ No salary deductions to repay any of the above.	◦ All costs of recruitment services. ◦ Visa and single-permit processing fees (Directive (EU) 2024/1233, Article 10). ◦ Transport, medical, and administrative costs necessary to take up the post.

Dhaka Principles: ihrb.org · IOM IRIS Standard: iris.iom.int · ILO Fair Recruitment: ilo.org

- **Fees repackaged under alternative labels:** Amounts attributed under headings like ‘processing fee’, ‘training fee’, ‘orientation fee’, ‘visa deposit’, ‘security deposit’, ‘language-course fee tied to the offer’, ‘medical-examination fee’, ‘police=clearance fee’, ‘seat-reservation fee’ or ‘priority-visa fee’ all fall within the ILO definition of recruitment fees and related costs and are therefore prohibited to be charged to the worker.
- **Payment demanded through informal or untraceable channels:** Requests made to transfer funds to a personal bank account, in cash, via international money-transfer to an individual, via prepaid gift cards or via a shell company registered outside the destination Member state is a red flag. For example, The German Chamber of Commerce states plainly that ‘German law strictly prohibits charging applicants any fees for placement or advisory services.. If someone demands money from you for a job placement or visa support, this is not legitimate’. Equivalent legal architecture applies across most other Member States as well.
- **Loans, advances or credit arrangements offered by the recruiter or affiliated intermediary:** An offer of financing a candidate’s fees, tied to future employment, is a red flag and a warning of debt-bondage risk. This is inconsistent with fair recruitment norms.

5. Contract and Documentation Indicators

- **Absence of a written contract before departure:** International standards require migrant workers to receive a written contract, in a language they understand, before departure. Any arrangement whereby ‘the contract will be signed on arrival’ is a documented pattern in contract-substitution fraud.
- **Divergence between verbal promises and written contract terms:** Wages, benefits, working hours, leave, contract duration, notice period, accommodation, cost of return transport and

termination clauses that differ from what was verbally promised or that differ between the version signed in India and the version presented on arrival in the Member State constitute contract substitution.

- **Refusal to provide a copy of the contract for retention:** The candidate's retention of an original signed contract before departure is standard practice. Refusal, including on the grounds that 'the original stays with the employer' or 'you will get it after arrival' is an indicator of exploitative intent.
- **One-sided ancillary clauses:** Clauses imposing disproportionate penalties for early termination by the worker, clauses tying accommodation and transport exclusively to the employer with rent deductions from wages, clauses requiring the worker to surrender identity documents to the employer and mandatory arbitration clauses in the employer's home jurisdiction that effectively deny the worker access to Member State labour courts deviate from the equal-treatment standard of Directive (EU) 2024/1233

6. Visa Route, Housing and Identification Documents

- **Retention of passport or identity-document by the recruiter or employer:** Even if framed as 'safekeeping', 'for visa processing' or 'until fees is paid', such retention by a recruiter or employer is prohibited by IRIS Principle 2 and Dhaka Principle 4.
- **Instruction or advise to travel on a visa that does not authorize employment:** Entry to an EU Member State on a short-stay Schengen visa (Type C, up to 90 days in 180) or a tourist visa to 'start work' and 'regularize later' is unlawful and makes the candidate susceptible to removal under national law. Legal EU labour mobility uses the national work visa/single permit (Directive (EU)2024/1233), the Blue Card, the Intra-Corporate Transferee permit (Directive 2014/66/EU), the Researcher/Student permit or a national scheme.
- **Instruction to enter on a student, tourist or family visa with intent to convert to work:** Except for the specific in-country change of status pathways permitted by the destination Member State's national law, induced misuse of a non-work visa is fraud on the immigration authority.
- **Requirement to surrender biometric enrolment or immigration correspondence to the recruiter:** Legitimate immigration procedures require the applicant's personal appearance at biometric enrolment for eg. At the Visa Application Centre or Consulate. A recruiter who is claiming to 'handle biometrics on your behalf' or intercepts official correspondence with the Member State authority is committing fraud.

7. Digital and Online Indicators

The rapid mainstreaming of generative AI has given rise to a new generation of and led to a marked rise in AI-enabled recruitment fraud. Such cyber-enabled recruitment fraud is now being actively deployed across every stage of the migration cycle through deepfake interviews, cloned voices and synthetic authority correspondences.

- **Look-alike domains:** Domains that mimic legitimate ones through single character substitution, hyphenation is a leading example of employer-impersonation fraud. Evidences of a '.org' or '.info' or '.com' being impersonated is a case in point. The candidate should verify the sender's domain against the corporate site accessed through an independent search and not through any link supplied by the recruiter.
- **Job postings on aggregator platforms without corroboration on the employer's career page:** A vacancy advertised on an aggregator platform but absent from the employer's own website should be corroborated with the employer's human-resources contact via the official corporate domain before any engagement.
- **AI-generated job listings and fake corporate profiles:** ICMPD's The Digital Trap (2025) and industry sources record the growing use of AI-generated offer letters, fabricated corporate websites and synthetic recruiter profiles on LinkedIn. Indictors include recruiter profiles with fewer than 50 connections, absent post history, stock-image profile photographs and mismatched employment history.
  Despite exercising the above-mentioned cautionary screening, typologies like 'deep fake video interviews' have rendered generative AI as a powerful force multiplier for such recruitment fraudulent activities.

DEEPFAKE VIDEO INTERVIEW — DETECTION MARKERS

Adapted from FBI IC3 Public Service Announcement I-062822-PY (28 June 2022)

AUDIO-VISUAL MISMATCH

- Lip movement does not fully coordinate with the audio being spoken.
- Coughing, sneezing, or other auditory actions not aligned with what is shown.

IDENTITY-DATA REUSE

- Stolen Personally Identifiable Information (PII) used to pass background checks.
- Fake identities constructed from breach data circulating on the dark web.

BEHAVIOURAL CUES

- Reluctance to switch camera angle or move closer to the lens.
- Refusal to appear on an unscheduled follow-up video call at short notice.

TECHNICAL CUES

- Frame-rate glitches at facial edges, especially around hair and jawline.
- Uniform, over-smooth skin texture; inconsistent lighting on the face.

Reference: FBI IC3, PSA I-062822-PY — ic3.gov/PSA/2022/psa220628

Mitigation measures

- In addition to the job offer, verify the interviewer. Cross-check the interviewer's identity against the employer's official corporate directory or LinkedIn corporate page by using contact details sourced independently of the recruiter.
- Insist on at least one live, in-person or supervised biometric verification step before signing any contract or making any payment. For EU work-permit routes, this will automatically happen at the Visa Application Centre biometrics enrolment. This visit should be used to verify or authenticate the identity of the recruiter.
- Verify all 'recognition' letters directly with the destination Member State's ENIC-NARIC centre through the joint ENIC-NARIC portal.
- Treat voice notes, phone calls and short video messages as unverified until confirmed on a separate channel.
- Report suspected AI-enabled recruitment fraud. In India, this should be reported to the Indian Mission in the destination Member State and the MADAD portal. In the EU, the grievance should be addressed to the MEMBER State's national cybercrime unit and to the national anti-trafficking coordinator for trafficking indicators.